

1.	Nano Banc v. Aspiration Partners, Inc 22-1257513	The Motion for Leave to Amend, filed on 8/12/24 by Plaintiff Nano Banc ("Bank") is GRANTED. The Motion adequately complies with <i>C.R.C. 3.1324</i>, and the Opposition fails to show that the defense will suffer actual prejudice from allowing the amendment at this time. However, Bank's request that its proposed First Amended Complaint "be deemed filed and served as of the date this Motion" is DENIED. Bank is to file its First Amended Complaint within 5 days, and promptly serve same. <i>Counsel for Bank is to give notice of this ruling.</i>
2.	Ramirez v. General Motors, LLC 23-1308079	Before the Court is a motion to compel deposition of Defendant General Motors, LLC's ("Defendant") Person Most Qualified ("PMQ") filed by Plaintiff Deyamin Ramirez ("Plaintiff"). For the reasons set forth below, the motion is GRANTED IN PART and DENIED IN PART. Defendant is correct that a separate statement was required for this motion. (See <i>Cal. Rules of Court, rule 3.1345(a)</i>.) The motion asks the Court to compel Defendant to provide a PMQ for each of 30 stated categories, where Defendant asserted varying objections and responses to each. A separate statement is required for "[a]ny motion involving the content of a discovery request or the responses to such a request," including motions to "compel answers at a deposition." (<i>Cal. Rules of Court, rule 3.1345(a)(4)</i>.) Here, the Court is effectively being asked to consider the objections for each of those categories and rule on them. As a result, the Court finds a separate statement was required for this motion, to the extent it asks the Court to compel a PMQ deposition for the categories still in dispute, i.e., Category Nos. 5, 6, 8, 9, 11-16, 18, 19 and 21-29. Accordingly, the motion as to Category Nos. 5, 6, 8, 9, 11-16, 18, 19 and 21-29 is DENIED. (See <i>Mills v. U.S. Bank</i> (2008) 166 Cal.App.4th 871, 893.) With respect to the remaining categories, given Defendant's representation in its Objections that it would produce a witness as to Category Nos. 1-4, 7, 10, 17, 20 and 30, the motion is thus effectively seeking compliance, rather than a ruling on the objections. The motion is therefore GRANTED to the extent it seeks to compel Defendant to produce a PMQ for Categories 1-4, 7, 10, 17, 20 and 30, subject to any objections that may be made in such deposition as to either the scope, or the specific questions posed. Any disagreements not resolved in that process would then need to be addressed in a further meet and confer, with any remaining disputes

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